

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
HELEN MARSHALL and TISHA MARSHALL,

Plaintiff,

- against -

THE CITY OF NEW YORK, JOHN DOE #1, and
JOHN DOE #2, THE NAMES BEING FICTITIOUS
AND UNKNOWN,

Defendants.
-----X

Index No.

Plaintiffs designate
New York County as
place of trial.

The basis of the
venue is the
location of
occurrence.

S U M M O N S

Plaintiffs reside at:
Helen Marshall
770 St. Nicholas Ave (5-F)
New York, N.Y. 10031

County of New York

Tisha Marshall
1886 7th Avenue #3
New York, N.Y. 10026

County of New York

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 3, 2014

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
HELEN MARSHALL & TISHA MARSHALL
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, N.Y. 10007
John Doe #1, c/o: 30th Pct., 451 West 151st St, New York, N.Y. 10039
John Doe #2, c/o: 30th Pct., 451 West 151st St., New York, N.Y. 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
HELEN MARSHALL and TISHA MARSHALL,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JOHN DOE #1, and
JOHN DOE #2, THE NAMES BEING FICTITIOUS
AND UNKNOWN,

Defendants.

-----X
Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. That, at all times hereinafter mentioned, and on
August 5, 2013, the plaintiff, **HELEN MARSHALL**, was and still is a
resident of the County of New York, City and State of New
York.

2. That, at all times hereinafter mentioned, and on
August 5, 2013 the defendant, **THE CITY OF NEW YORK**, (hereinafter
referred to as "**THE CITY**") was and still is a domestic municipal
corporation, duly organized and existing under and by virtue of the
laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
August 5, 2013 the defendant, **JOHN DOE #1**, **The name being**
fictitious and unknown (hereinafter referred to as "**DOE #1**"), was
and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on August 5, 2013 the defendant, **JOHN DOE #2, The name being fictitious and unknown** (hereinafter referred to as "DOE #2"), was and still is a resident of the City and State of New York.

5. That, the plaintiff, **HELEN MARSHALL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on October 16, 2013, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **HELEN MARSHALL**, testified at an oral examination pursuant to the General Municipal Law on May 13, 2014; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That on August 5, 2013 the plaintiff, **HELEN MARSHALL** was in apartment #5F of 770 St. Nicholas Avenue, in the County of New York, City and State of New York.

7. That, on August 5, 2013, various police officers, agents, servants, and/or employees of the defendant and/or defendants had broken into the plaintiffs, **HELEN MARSHALL**, apartment, wearing "SWAT Team Uniforms", and/or other uniforms with shields into the aforementioned apartment.

8. Without any warrant the plaintiff, **HELEN MARSHALL**, was arrested and handcuffed by the defendant and/or defendants.

9. Various items were stolen from the plaintiff, **HELEN MARSHALL'S** aforementioned apartment, by the defendant and/or defendants.

10. That, the plaintiff, **HELEN MARSHALL**, was taken to the 30th Precinct where she remained, was photographed and fingerprinted.

11. The plaintiff, **HELEN MARSHALL**, was taken to Central Booking by the defendant and/or defendants herein.

12. That, the plaintiff, **HELEN MARSHALL**, was taken by the defendants and/or defendants to Bellevue Hospital wherein she received medical treatment from the injuries sustained by the defendant and/or defendant herein.

13. That, New York County District Attorney office declined to prosecute the plaintiff, **HELEN MARSHALL**, for any charge which was against her by the defendant and/or defendants.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, HELEN MARSHALL

14. That, the plaintiff, **HELEN MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 13 with the same force and effect as if hereinafter more fully set forth at length herein.

15. That, on August 5, 2013 the plaintiff, **HELEN MARSHALL**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

16. That, the plaintiff, **HELEN MARSHALL** , was assaulted/ battered without justification and without cause and without excuse.

17. That, the assault/battery took place within premises known as 770 St. Nicholas Avenue, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **HELEN MARSHALL** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

18. That, at all times hereinafter mentioned and on August 5, 2013 and for sometime prior thereto, defendant, **DOE #1**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

19. That, at all times hereinafter mentioned and on August 5, 2013, and for sometime prior thereto, defendant, **DOE #2**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

20. That, the aforementioned assault and battery of the plaintiff, **HELEN MARSHALL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

21. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL** , was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

22. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, HELEN MARSHALL

24. That, the plaintiff, **HELEN MARSHALL** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 23 with the same force and effect as if hereinafter more fully set forth at length herein.

25. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers,

agents, servants and/or other employees of the defendant, **THE CITY**.

26. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

27. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOE #1**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

28. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOE #2**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

29. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOE #1**, who was employed by the defendant, **THE CITY**.

30. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police

officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOE #2**, who was employed by the defendant, **THE CITY**.

31. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

32. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

33. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, HELEN MARSHALL

34. That the plaintiff, **HELEN MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 33 with the same force and effect as if hereinafter more fully set forth at length herein.

35. That, on August 5, 2013, the plaintiff, **HELEN MARSHALL**, was caused to be falsely arrested and falsely imprisoned

without probable cause.

36. That, the plaintiff, **HELEN MARSHALL**, was arrested without an arrest warrant.

37. That, the false arrest/false imprisonment took place on premises known as 770 St. Nicholas Avenue #5F, in the County of New York, City and State of New York, and other locations and wherein the plaintiff, **HELEN MARSHALL** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

38. That, the aforementioned false arrest and false imprisonment of the plaintiff, **HELEN MARSHALL** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

39. That, the aforementioned false arrest and false imprisonment of the plaintiff, **HELEN MARSHALL** , was carried out by defendant, **DOE #1**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

40. That, the aforementioned false arrest and false imprisonment of the plaintiff, **HELEN MARSHALL** , was carried out by defendant, **DOE #2**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

41. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

42. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

43. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, HELEN MARSHALL

44. The plaintiff, **HELEN MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 43, with the same force and effect as if hereinafter more fully set forth at length herein.

45. That the plaintiff, **HELEN MARSHALL**, did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; maliciously prosecuted and deprived of her constitutional rights pursuant to the

Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

46. That at all times hereinafter mentioned, the defendant, **DOE #1**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

47. That at all times hereinafter mentioned, the defendant, **DOE #2**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

48. Defendants, **DOE #1, and DOE #2**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

49. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **HELEN MARSHALL**, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **HELEN MARSHALL** to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **HELEN MARSHALL**, to be informed of the nature and cause of the accusation against him as secured to his under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **HELEN MARSHALL**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

50. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

51. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

52. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

53. That the deprivation of plaintiff, **HELEN MARSHALL** Constitutional Rights was the result of the defendant, **THE CITY'S** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

54. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

55. That the detaining of plaintiff, **HELEN MARSHALL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

56. That the deprivation of plaintiff, **HELEN MARSHALL** Constitutional Rights was the result of the defendant, **DOE #1'S** arrest of the plaintiff, **HELEN MARSHALL**, without probable cause.

57. That the deprivation of plaintiff, **HELEN MARSHALL'S** Constitutional Rights was the result of the defendant, **DOE #2'S** arrest of the plaintiff, **HELEN MARSHALL**, without probable cause.

58. That the deprivation of plaintiff, **HELEN MARSHALL'S** Constitutional Rights was a result of the defendant, **THE CITY'S** custom and policy in failing to discipline officers for the use of excessive force.

59. That the deprivation of plaintiff, **HELEN MARSHALL'S** Constitutional Rights was the result of **DOE #1's** use of excessive force.

60. That the deprivation of plaintiff, **HELEN MARSHALL 's** Constitutional Rights was the result of **DOE #2's** use of excessive

force.

61. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **HELEN MARSHALL** .

62. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **HELEN MARSHALL** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

63. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

64. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

65. That, by reason of the foregoing, the plaintiff, **HELEN MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

PRELIMINARY STATEMENT

66. That, the plaintiff, **TISHA MARSHALL** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 65 with the same force and effect as if hereinafter more fully set forth at length herein.

67. That, at all times hereinafter mentioned, and on August 5, 2013, the plaintiff, **TISHA MARSHALL** , was and still is a resident of the County of New York, City and State of New York.

68. That, at all times hereinafter mentioned, and on August 5, 2013 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

69. That, at all times hereinafter mentioned, and on August 5, 2013 the defendant, **JOHN DOE #1, The name being fictitious and unknown** (hereinafter referred to as "**DOE #1**"), was and still is a resident of the City and State of New York.

70. That, at all times hereinafter mentioned, and on August 5, 2013 the defendant, **JOHN DOE #2, The name being fictitious and unknown** (hereinafter referred to as "**DOE #2**"), was

and still is a resident of the City and State of New York.

71. That, the plaintiff, **TISHA MARSHALL**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on October 16, 2013, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **TISHA MARSHALL**, testified at an oral examination pursuant to the General Municipal Law on May 13, 2014; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

72. That, on August 5, 2013 the plaintiff, **TISHA MARSHALL** was in apartment #5F of 770 St. Nicholas Avenue, in the County of New York, City and State of New York.

73. That various police officers, and/or other agents, servants, and/or employees of the defendant and/or defendants had thrown the plaintiff, **TISHA MARSHALL**, to the ground, and told her not to move and held a gun pointed to the plaintiff, **TISHA MARSHALL**.

74. That, the defendant, and/or defendants refused to display and/or show any such warrant to the plaintiff, **TISHA MARSHALL**, and had searched her and removed her from her apartment.

75. That money, cell phones and a lap top computer was stolen from the plaintiff, **TISHA MARSHALL**, apartment by the defendant and/or defendants herein.

76. That the plaintiff, **TISHA MARSHALL**, was taken to the 30th precinct and remained there for a substantial amount of time whereby she was photographed, fingerprinted and searched.

77. That, the plaintiff, **TISHA MARSHALL**, was taken to Central Booking by the defendant and/or defendant, their agents, servants, and/or employees.

78. That, the plaintiff, **TISHA MARSHALL**, was thereafter taken to Bellevue Hospital by the defendant and/or defendants for the injuries which were caused by their actions as previously stated above.

79. That the New York County District Attorney office had declined to prosecute the plaintiff, **TISHA MARSHALL** for any charges brought against her by the defendant and/or defendants herein.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, TISHA MARSHALL

80. That, the plaintiff, **TISHA MARSHALL** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 79 with the same force and effect as if hereinafter more fully set forth at length herein.

81. That, on August 5, 2013 the plaintiff, **TISHA MARSHALL**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

82. That, the plaintiff, **TISHA MARSHALL** , was assaulted/battered without justification and without cause and without excuse.

83. That, the assault/battery took place within premises known as 770 St. Nicholas Avenue, in the County of New York, City and State of New York, and other locations wherein the plaintiff, **TISHA MARSHALL** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

84. That, at all times hereinafter mentioned and on August 5, 2013 and for sometime prior thereto, defendant, **DOE #1**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

85. That, at all times hereinafter mentioned and on August 5, 2013, and for sometime prior thereto, defendant, **DOE #2**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

86. That, the aforementioned assault and battery of the plaintiff, **TISHA MARSHALL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

87. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and,

upon information and belief, her injuries are permanent in nature and effect.

88. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, TISHA MARSHALL

89. That, the plaintiff, **TISHA MARSHALL** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 88 with the same force and effect as if hereinafter more fully set forth at length herein.

90. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

91. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

92. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOE #1**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers,

agents, servants and/or employees of the defendant, **THE CITY**.

93. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOE #2**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

94. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOE #1**, who was employed by the defendant, **THE CITY**.

95. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOE #2**, who was employed by the defendant, **THE CITY**.

96. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

97. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for

the safety of others, as well as having performed intentional acts.

98. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, TISHA MARSHALL

99. That the plaintiff, **TISHA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 98 with the same force and effect as if hereinafter more fully set forth at length herein.

100. That, on August 5, 2013, the plaintiff, **TISHA MARSHALL**, was caused to be falsely arrested and falsely imprisoned without probable cause.

101. That, the plaintiff, **TISHA MARSHALL**, was arrested without an arrest warrant.

102. That, the false arrest/false imprisonment took place on premises known as 770 St. Nicholas Avenue #5F, in the County of New York, City and State of New York, and other locations and wherein the plaintiff, **TISHA MARSHALL** was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

103. That, the aforementioned false arrest and false imprisonment of the plaintiff, **TISHA MARSHALL**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

104. That, the aforementioned false arrest and false imprisonment of the plaintiff, **TISHA MARSHALL** , was carried out by defendant, **DOE #1**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

105. That, the aforementioned false arrest and false imprisonment of the plaintiff, **TISHA MARSHALL** , was carried out by defendant, **DOE #2**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

106. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

107. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

108. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, TISHA MARSHALL

109. The plaintiff, **TISHA MARSHALL**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 108, with the same force and effect as if hereinafter more fully set forth at length herein.

110. That the plaintiff, **TISHA MARSHALL**, did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; maliciously prosecuted and deprived of her constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

111. That at all times hereinafter mentioned, the defendant, **DOE #1**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

112. That at all times hereinafter mentioned, the defendant, **DOE #2**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

113. Defendants, **DOE #1, and DOE #2**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

114. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **TISHA MARSHALL**, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **TISHA MARSHALL** to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **TISHA MARSHALL**, to be informed of the nature and cause of the accusation against him as secured to her under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **TISHA MARSHALL**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

115. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

116. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

117. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

118. That the deprivation of plaintiff, **TISHA MARSHALL** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

119. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

120. That the detaining of plaintiff, **TISHA MARSHALL** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

121. That the deprivation of plaintiff, **TISHA MARSHALL** Constitutional Rights was the result of the defendant, **DOE #1's** arrest of the plaintiff, **TISHA MARSHALL**, without probable cause.

122. That the deprivation of plaintiff, **TISHA MARSHALL'S** Constitutional Rights was the result of the defendant, **DOE #2's** arrest of the plaintiff, **TISHA MARSHALL**, without probable cause.

123. That the deprivation of plaintiff, **TISHA MARSHALL's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

124. That the deprivation of plaintiff, **TISHA MARSHALL's** Constitutional Rights was the result of **DOE #1's** use of excessive force.

125. That the deprivation of plaintiff, **TISHA MARSHALL's** Constitutional Rights was the result of **DOE #2's** use of excessive force.

126. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **TISHA MARSHALL** .

127. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **TISHA MARSHALL** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

128. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

129. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

130. That, by reason of the foregoing, the plaintiff, **TISHA MARSHALL**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **HELEN MARSHALL**, demands judgment against the defendants, on the First, Second, Third, and Fourth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; and plaintiff, **TISHA MARSHALL** demands judgment against the defendants, on the Fifth, Sixth, Seventh and Eighth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
June 3, 2014

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs,
HELEN MARSHALL AND TISHA MARSHALL
Office & P.O. Address
11 Park Place, 10th Floor
New York, New York 10007
(212) 227-8865

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) .SS:
COUNTY OF NEW YORK)

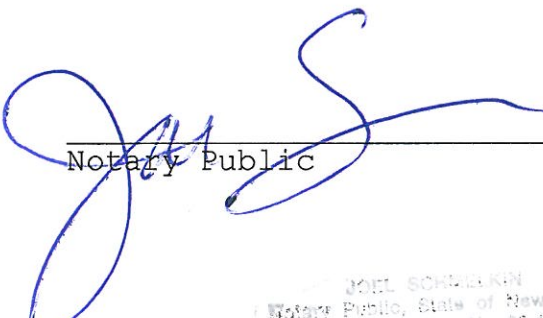
HELEN MARSHALL , being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing COMPLAINT and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



HELEN MARSHALL

Sworn to before me this
3 day of June , 2014



Notary Public

JOEL SCHWELKIN
Notary Public, State of New York
Qual. in Nassau Co. - No. 304790273
Commission Expires January 31, 2018

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) .SS:
COUNTY OF NEW YORK)

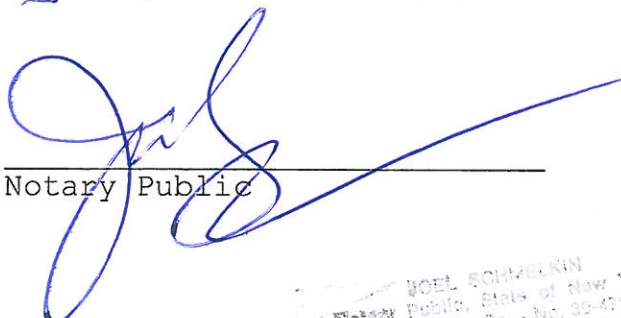
TISHA MARSHALL , being duly sworn deposes and says:

I am the plaintiff in this action. I have read the foregoing COMPLAINT and know its contents and the same are true to my knowledge and belief except as to matters therein stated to be alleged on information and belief and as to those matters I believe it to be true.



TISHA MARSHALL

Sworn to before me this
3 day of June , 2014



Notary Public

JOEL SCHWELKIN
Notary Public, State of New York
Qual. in Nassau Co. - No. 80-4793276
Commission Expires January 31, 2018

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

HELEN MARSHALL and TISHA MARSHALL,

Plaintiffs,

-against-

THE CITY OF NEW YORK, JOHN DOE #1, and JOHN DOE #2, THE NAMES BEING FICTITIOUS AND
UNKNOWN,

Defendants.

SUMMONS AND COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: JUNE 3, 2014

Signature

Print Signer's Name Joel Schmelkin

Service of a copy of the within

is hereby admitted.

Dated:

.....
Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐

NOTICE OF
ENTRY

that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐

NOTICE OF
SETTLEMENT

that an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on

20

, at

M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone

11 PARK PLACE, 10TH FLOOR

NEW YORK NY 10007